

HOUSE No. 4297

The Commonwealth of Massachusetts

PRESENTED BY:

Paul McMurtry

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the Lowell Mason Act to mandate a percentage of Chapter 70 funds for Arts Education Programs.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Paul McMurtry</i>	<i>11th Norfolk</i>	<i>2/20/2025</i>
<i>John J. Marsi</i>	<i>6th Worcester</i>	<i>9/8/2025</i>
<i>John J. Cronin</i>	<i>Worcester and Middlesex</i>	<i>9/15/2025</i>
<i>Margaret R. Scarsdale</i>	<i>1st Middlesex</i>	<i>9/15/2025</i>
<i>Tara T. Hong</i>	<i>18th Middlesex</i>	<i>9/17/2025</i>
<i>Mary S. Keefe</i>	<i>15th Worcester</i>	<i>11/13/2025</i>
<i>Amy Mah Sangiolo</i>	<i>11th Middlesex</i>	<i>11/18/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>12/3/2025</i>

HOUSE No. 4297

By Representative McMurtry of Dedham, a petition (subject to Joint Rule 12) of Paul McMurtry relative to arts education programs. Education.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the Lowell Mason Act to mandate a percentage of Chapter 70 funds for Arts Education Programs.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. The General Laws are hereby amended by inserting after Chapter 70 the
2 following new chapter:-

3 Chapter 70C "Lowell Mason Arts Education Equity Act."

4 Section 1: The purpose of this Act is to ensure that all public-school students in
5 Massachusetts have access to high-quality arts education by mandating an additional percentage
6 of Chapter 70 Funding be allocated exclusively for those arts disciplines delineated in the MA
7 Arts Curriculum Framework: dance, media arts, music, theatre, and visual arts.

8 Section 2: Definitions. As used in this chapter, the following words shall, unless the
9 context clearly requires otherwise, have the following meanings:

10 (a) "Arts Education Programs" refers to standards-based instructional programs in the
11 visual and performing arts. The Arts are core-curricular subjects as defined by the 1993

Education Reform Act. They are also part of the Massachusetts suggested high-school course sequence in MassCore. All Pre-K—12 public-school arts curricula and courses should be aligned to the 2019 MA Arts Curriculum Framework.

(b) "Chapter 70 Funds" refers to the state aid provided to public school districts under the provisions of M.G. L. ch.. 70 ("Chapter 70").

(c) "Foundation Budget" refers to the minimum spending level required to provide an adequate education for all students, as defined under Chapter 70.

Section 3: Allocation of Chapter 70 Funding

(a) Notwithstanding any general or special law to the contrary, beginning in fiscal year 2026, each public and charter school district shall be allocated an additional 1% of its total Chapter 70 Funding towards new Arts Education Programs.

(b) The additional 1% allocation shall be calculated based on the district's total Chapter 70 Funds and its required local contribution combined to achieve foundation-level funding.

(c) Chapter 70 Funds allocated under this section shall be used exclusively for the following purposes:

1. At the State Level:

a. Three full-time staff members at the Massachusetts Department of Elementary and Secondary Education for Instruction, Finance, and Accountability, with at least one position to be an additional full-time arts content specialist (in addition to and under the supervision of the current one full-time position)

2. At the School District Level:

a. 80% for salaries of newly hired certified visual and performing arts educators in dance, media arts, music, theatre/drama, and visual arts.

b. The remaining 20% may be spent on any or all of the following items:

i. Professional development for arts educators including the development of a high quality and culturally responsive district-wide arts curriculum aligned with the Current 2019 Massachusetts Arts Curriculum Framework;

ii. Purchase of supplies, high quality instructional materials (HQIM), and equipment necessary for arts instruction (e.g., kilns, musical instruments, auditorium sound systems, dance mirrors, paint, musical scores, textbooks, arts-related software, etc.);

iii. Support for extracurricular and co-curricular programs in the arts including but not limited to artist residencies, out-of-school-time programs and other non-standards-based arts-related programs, including transportation to and from cultural events.

iv. Up to 1 percent of funds received may be used for a local educational agency's administrative expenses to implement this chapter annually.

c. These additional arts-focused Chapter 70 Funds may not be allocated to support any current arts faculty, current arts programs, or non-arts programs.

Section 4: Compliance and Reporting

(a) Each school district shall include in its annual budget report a detailed accounting of the allocation and expenditure of Chapter 70 Funds designated for Arts Education Programs.

(b) Each school district shall certify that such Chapter 70 Funds received will be used to supplement and not supplant funding for Arts Education received in the prior fiscal year. These additional Chapter 70 Funds may not be used to replace “sunsetting” or declining federal funding amounts that currently fund any arts educator nor can a job be cut one year to be replaced by Chapter 70 Funds the following year.

(c) The Department of Elementary and Secondary Education (DESE) shall monitor compliance with the provisions of this Act and shall require districts to submit annual reports detailing how the mandated Chapter 70 Funds were used to broaden and increase Arts Education Programs. The reports must be posted each school year on the DESE website. The full-time DESE staff in Section 4.(3) (c) (1) above will be responsible for this compliance and reporting.

(d) The Department may, for good cause shown, provide a one-year waiver from the requirements pursuant to Section 4 of subdivision (c 2 a) upon written request from the local educational agency. Such temporary waivers might be granted if there is a shortage of certified, licensed arts educators, and funding could support artist residencies or other substantial substitutions, provided this does not conflict with district/teacher contracts, in order to provide additional arts instruction to students.

(e) If a district fails to comply with any requirements of this Act, the DESE shall take corrective action, which may include but is not limited to withholding a portion of the district's Chapter 70 Funds until compliance is achieved.

Section 5: Chapter 70 Funds Source

(a) The percentage being required for school districts to spend on Arts Education Programs shall be in addition to their prior state funding requirements.

(b) Funds for this Act shall come from the Fair Share Funding, Massachusetts Lottery-Gaming receipts, or Student Opportunity Act Funding.

Section 7: Implementation and Support

(a) The DESE shall provide technical assistance to school districts in implementing this Act, including guidance on the budgeting processes to implement sequential Arts Education taught by certified arts educators.

(b) The DESE shall establish a Grant Program to support Arts Education and partnerships between school districts and local arts organizations. Evaluation metrics shall be included in the Grant Program and reported each year on the DESE website.

Section 8: Effective Date

This Act shall take effect on July 1st following its passage. Nothing in this Act prohibits the Legislature from appropriating funding for the Arts Education Programs in excess of any minimum annual appropriation stated herein.